

SOFTWARE SERVICES AGREEMENT

Master Agreement No. SSA-2024-0047

SERVICE PROVIDER	CLIENT
Nexora Technologies Private Limited 14th Floor, Emerald Tower Bandra Kurla Complex, Mumbai 400051 CIN: U72900MH2018PTC312456 GST: 27AACCN7890R1Z5	Arctis Financial Solutions Limited 9th Floor, Prestige Zenith Whitefield, Bengaluru 560066 CIN: L65910KA2012PLC064532 GST: 29AABCA4321F1ZP

Effective Date	1 April 2024	Initial Term	36 months
Contract Value	INR 2,40,00,000	Governing Law	Laws of India; Courts of Mumbai
Notice Period	30 calendar days (written)	Payment Terms	Net 45 days from invoice date

RECITALS

WHEREAS, Nexora Technologies Private Limited (**Service Provider**) is engaged in the business of providing enterprise software development, implementation, and managed IT services;

WHEREAS, Arctis Financial Solutions Limited (**Client**) desires to engage Service Provider to design, develop, deploy, and maintain a cloud-based financial analytics platform (the **Platform**) as more particularly described in Schedule A hereto;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the parties agree as follows:

SECTION 1 — DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context otherwise requires:

Affiliate means any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where control means ownership of more than fifty percent (50%) of voting securities.

Authorised Users means Client employees, contractors, and agents permitted to access the Platform as specified in Schedule B.

Business Day means any day other than Saturday, Sunday, or a public holiday in Maharashtra, India.

Change Order means a written agreement documenting modifications to scope, timeline, or pricing.

Confidential Information means any non-public information disclosed by one party to the other in connection with this Agreement that is designated as confidential or that reasonably should be understood to be confidential, including source code, algorithms, technical architecture, financial data,

business strategies, customer lists, pricing structures, and the terms of this Agreement.

Data Protection Laws means the Information Technology Act 2000, its 2008 Amendment, the Digital Personal Data Protection Act 2023, and all applicable rules and guidelines thereunder.

Deliverable means any work product, software module, documentation, or other output produced by Service Provider under the Statement of Work.

Force Majeure Event means any event beyond a party's reasonable control, including acts of God, pandemics, government actions, war, or third-party infrastructure failures, but expressly excluding financial hardship or inability to pay.

Intellectual Property Rights means all patents, copyrights, trademarks, trade secrets, database rights, and all other intellectual property rights worldwide, whether registered or unregistered.

Service Level Agreement (SLA) means the commitments described in Schedule C, including uptime guarantees, response times, and remedies.

Service Provider Technology means all software, tools, frameworks, and know-how owned or licensed by Service Provider prior to or independently of this Agreement.

1.2 Interpretation

References to a statute include subordinate legislation. The singular includes the plural. 'Including' means including without limitation. Headings are for convenience only and shall not affect interpretation.

SECTION 2 — SCOPE OF SERVICES

2.1 Service Obligations

Service Provider shall perform the Services described in Schedule A with the degree of skill, care, and diligence expected of a professional enterprise software services provider. Service Provider shall assign suitably qualified personnel to perform the Services.

2.2 Statement of Work

The initial Statement of Work is set out in Schedule A. Additional statements of work may be executed from time to time. In any conflict between a Statement of Work and this Agreement, this Agreement prevails unless the Statement of Work expressly states otherwise in writing.

2.3 Change Management

2.3.1 Either party may request changes by submitting a written change request. Service Provider shall, within ten (10) Business Days, provide an impact assessment detailing effects on scope, timeline, and fees.

2.3.2 No change takes effect until a Change Order is executed in writing. Service Provider is not obligated to implement changes absent an executed Change Order.

2.3.3 Emergency changes to prevent material business harm may be implemented at Client's written request, provided a Change Order is executed within five (5) Business Days. Emergency change fees shall be calculated at 1.5x the standard time-and-materials rate.

2.4 Subcontracting

Service Provider may subcontract portions of the Services with Client's prior written consent, not to be unreasonably withheld. Service Provider remains primarily liable for all subcontractor acts and omissions. Subcontractors must be bound by confidentiality obligations no less protective than Section 7.

SECTION 3 — FEES, INVOICING, AND PAYMENT

3.1 Contract Fees

Client shall pay Service Provider fees as set out in Schedule D. Total contract value shall not exceed INR 2,40,00,000 (Rupees Two Crore Forty Lakhs) exclusive of applicable taxes, unless agreed by Change Order.

3.2 Invoicing

Service Provider shall issue invoices monthly in arrears. Each invoice shall include: (i) description of Services; (ii) period covered; (iii) milestone completions; (iv) pre-approved expenses; and (v) applicable GST per the Goods and Services Tax Act 2017.

3.3 Payment Terms

Client shall pay all undisputed invoices within forty-five (45) calendar days of the invoice date. Payments shall be made by NEFT/RTGS/IMPS to the bank account in Schedule D. All amounts in Indian Rupees (INR).

3.4 Late Payment

3.4.1 If Client fails to pay any undisputed amount by the due date, interest shall accrue at eighteen percent (18%) per annum, calculated daily from the due date until actual payment.

3.4.2 If any invoice remains unpaid for more than sixty (60) days beyond the due date, Service Provider may, upon fifteen (15) days' written notice, suspend Services until overdue amounts are paid. Such suspension does not constitute breach.

3.5 Disputed Invoices

If Client disputes any portion of an invoice, Client shall: (i) pay the undisputed portion by the due date; (ii) notify Service Provider in writing within fifteen (15) days of receipt specifying the basis for dispute; and (iii) work in good faith to resolve within thirty (30) days. Interest does not accrue on bona fide disputed amounts during the resolution period.

3.6 Taxes

Each party is responsible for taxes on its own income. Client is responsible for applicable withholding taxes and shall provide a withholding tax certificate within fifteen (15) days of deduction. GST, where applicable, shall be charged by Service Provider and remitted to the appropriate authority.

3.7 Price Escalation

Service Provider may increase fees for any Renewal Term by no more than five percent (5%) above the preceding term's fees, upon ninety (90) days' written notice before commencement of the Renewal Term.

SECTION 4 — INTELLECTUAL PROPERTY RIGHTS

4.1 Ownership of Deliverables

Subject to full payment of all fees, Service Provider assigns to Client all right, title, and interest, including all Intellectual Property Rights, in and to Deliverables specifically created for Client under the Statement of Work (Client IP), excluding any Service Provider Technology embedded therein.

4.2 Service Provider Technology

4.2.1 Service Provider Technology remains the sole property of Service Provider. To the extent Service Provider Technology is incorporated into Deliverables, Service Provider grants Client a non-exclusive, non-transferable, perpetual, irrevocable, royalty-free licence to use such Service Provider Technology solely as embedded in the Deliverables for Client's internal business purposes.

4.2.2 Client shall not reverse engineer, decompile, or disassemble any Service Provider Technology, except to the extent permitted by applicable law notwithstanding this restriction.

4.3 Client Background IP

All data, systems, and materials provided by Client (Client Materials) remain Client's sole property. Client grants Service Provider a limited, non-exclusive, non-transferable licence to use Client Materials solely for performing the Services during the term.

4.4 Open Source Software

Service Provider shall identify all open-source software in Deliverables in Schedule E. Service Provider shall not incorporate copyleft-licensed open-source software (including GPL, LGPL, AGPL) without prior written consent. Service Provider indemnifies Client against claims arising from unauthorized use of open-source software in breach of this clause.

4.5 Moral Rights

To the extent permitted by law, Service Provider waives, and shall procure waiver by its personnel and subcontractors of, all moral rights in Client IP. Where waiver is impermissible, Service Provider consents to Client exercising all acts that would otherwise infringe such rights.

SECTION 5 — WARRANTIES, DISCLAIMER, AND LIMITATION OF LIABILITY

5.1 Service Provider Warranties

Service Provider warrants that: (a) it has full authority to enter into and perform this Agreement; (b) Services will be performed with reasonable skill and care by qualified personnel; (c) Deliverables will not, to Service Provider's knowledge, infringe third-party Intellectual Property Rights; (d) software delivered will be free from material defects for ninety (90) days following delivery (Warranty Period); and (e) Service Provider will comply with all applicable laws including Data Protection Laws.

5.2 Client Warranties

Client warrants that: (a) it has full authority to enter into this Agreement; (b) Client Materials do not infringe third-party rights; and (c) Client will use the Platform and Services only for lawful purposes in accordance with this Agreement.

5.3 Disclaimer

EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, NEITHER PARTY MAKES ANY REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. SERVICE PROVIDER DOES NOT WARRANT THAT THE PLATFORM WILL BE UNINTERRUPTED OR ERROR-FREE.

5.4 Limitation of Liability

5.4.1 Liability Cap. Each party's total aggregate liability under or in connection with this Agreement, whether in contract, tort, breach of statutory duty, or otherwise, shall not exceed the total fees paid or payable by Client to Service Provider during the twelve (12) months immediately preceding the event giving rise to the claim.

5.4.2 Exclusion of Consequential Loss. Neither party shall be liable for any indirect, incidental, special, consequential, or punitive loss, including loss of profits, revenue, data, goodwill, or business interruption, even if advised of the possibility of such damages.

5.4.3 Exceptions. The limitations in 5.4.1 and 5.4.2 shall not apply to: (i) death or personal injury caused by negligence; (ii) fraud or fraudulent misrepresentation; (iii) indemnification obligations under Section 6; (iv) wilful misconduct or gross negligence; or (v) breaches of Section 7 (Confidentiality) or Section 4 (Intellectual Property).

5.4.4 Mitigation. Each party shall take reasonable steps to mitigate any loss or damage suffered.

5.5 Defects Remedy

During the Warranty Period, Service Provider shall correct material defects at no charge within fifteen (15) Business Days of receiving written notice. If Service Provider fails to correct such defect within that period, Client may engage a third party at Service Provider's reasonable expense.

SECTION 6 — INDEMNIFICATION

6.1 Service Provider Indemnity

Service Provider shall indemnify, defend, and hold harmless Client and its Affiliates, directors, officers, employees, and agents from and against any third-party claims, losses, damages, costs, and expenses (including reasonable legal fees) arising from: (a) breach of Service Provider's representations, warranties, or obligations; (b) infringement of third-party Intellectual Property Rights by the Deliverables (excluding infringement caused by Client Materials or Client's modifications); (c) personal injury or property damage caused by Service Provider personnel; or (d) Service Provider's gross negligence or wilful misconduct.

6.2 Client Indemnity

Client shall indemnify, defend, and hold harmless Service Provider and its Affiliates from and against any Losses arising from: (a) breach of Client's representations, warranties, or obligations; (b) infringement by Client Materials; (c) use of the Platform in violation of applicable laws; or (d) Client's gross negligence or wilful misconduct.

6.3 Indemnification Procedure

The Indemnified Party shall: (i) promptly notify the Indemnifying Party in writing (failure to do so only affects indemnification if the Indemnifying Party is materially prejudiced); (ii) grant the Indemnifying Party sole control of defence and settlement, provided no settlement imposes obligations on the Indemnified Party without written consent; and (iii) provide reasonable cooperation at the Indemnifying Party's expense.

6.4 IP Infringement Mitigation

If a Deliverable becomes subject to an infringement claim, Service Provider shall at its option: (i) procure the right for Client to continue use; (ii) modify the Deliverable to be non-infringing while preserving functionality; or (iii) if neither is commercially practicable, accept return and refund fees paid for the affected Deliverable.

SECTION 7 — CONFIDENTIALITY AND DATA PROTECTION

7.1 Confidentiality Obligations

Each party shall: (a) hold all Confidential Information of the other party in strict confidence using at least the same degree of care it applies to its own confidential information of similar nature (no less than reasonable care); (b) use Confidential Information solely for performing obligations or exercising rights under this Agreement; (c) not disclose Confidential Information to any third party without prior written consent, except to Affiliates, employees, contractors, and professional advisors who need to know and are bound by equivalent confidentiality obligations; and (d) promptly notify the Disclosing Party of any unauthorized use or disclosure discovered.

7.2 Exceptions

Obligations in 7.1 do not apply to information that: (i) is or becomes publicly available through no fault of the Receiving Party; (ii) was rightfully known to the Receiving Party without restriction before disclosure; (iii) is independently developed by the Receiving Party without use of Confidential Information; or (iv) is required to be disclosed by law, court order, or regulatory authority, provided the Receiving Party gives prompt written notice to enable the Disclosing Party to seek a protective order.

7.3 Return of Information

Upon termination or expiry, or upon request, the Receiving Party shall promptly return or securely destroy all Confidential Information and certify such return or destruction in writing. A party may retain Confidential Information required by law or in automated backup systems, subject to continuing confidentiality obligations.

7.4 Data Protection

7.4.1 Where Service Provider processes personal data on Client's behalf, Service Provider acts as data processor and Client acts as data fiduciary under applicable Data Protection Laws.

7.4.2 Service Provider shall: (i) process personal data only on documented Client instructions; (ii) implement appropriate technical and organizational security measures; (iii) not engage sub-processors without prior written Client consent; (iv) notify Client within seventy-two (72) hours of becoming aware of a personal data breach; and (v) upon termination, delete or return all personal data as directed by Client.

7.4.3 A Data Processing Agreement (DPA) shall be executed as Schedule F and is incorporated herein by reference. In any conflict between this Agreement and the DPA on data protection matters, the DPA prevails.

SECTION 8 — TERM AND TERMINATION

8.1 Initial Term

This Agreement commences on the Effective Date and continues for thirty-six (36) months, unless earlier terminated per this Section.

8.2 Renewal

Upon expiry of the Initial Term, this Agreement automatically renews for successive twelve (12) month Renewal Terms unless either party provides written notice of non-renewal at least ninety (90) days before the end of the then-current term.

8.3 Termination for Cause

8.3.1 Either party may terminate immediately on written notice if the other party: (a) materially breaches this Agreement and fails to remedy within thirty (30) days of written notice; (b) becomes insolvent or has a receiver or administrator appointed; or (c) undergoes a change of control resulting in a direct competitor acquiring control of that party.

8.3.2 Service Provider may terminate immediately on written notice if Client fails to pay any undisputed amount within sixty (60) days of the due date and has not cured the failure within fifteen (15) days of a written non-payment notice.

8.4 Termination for Convenience

Client may terminate for convenience on ninety (90) days' written notice. Upon such termination, Client shall pay: (i) all fees for Services to the termination date; (ii) all non-cancellable third-party costs incurred by Service Provider; and (iii) a termination fee equal to thirty percent (30%) of fees that would have been payable for the remainder of the then-current term, capped at three (3) months' fees. Service Provider shall use reasonable efforts to mitigate such costs.

8.5 Effects of Termination

Upon termination or expiry: (a) all licences terminate except licences to Client IP fully paid for; (b) each party returns or destroys the other's Confidential Information; (c) Service Provider provides up to ninety (90) days of transition assistance at standard time-and-materials rates; (d) Client pays all outstanding undisputed invoices within thirty (30) days; and (e) Sections 4, 5, 6, 7, 9, and 10 survive.

8.6 Step-In Rights

If Service Provider fails to perform material obligations for a continuous period exceeding thirty (30) days due to a Force Majeure Event or insolvency, Client may, on ten (10) days' written notice, engage an alternative provider. Service Provider shall cooperate in transitioning the Services and grant access to all code repositories, environments, tools, and documentation necessary for service continuity.

SECTION 9 — SERVICE LEVELS AND PERFORMANCE

9.1 Uptime Commitment

Service Provider guarantees the Platform shall be available for at least 99.5% of the time in any calendar month, measured 24x7 and excluding Scheduled Maintenance Windows.

9.2 Scheduled Maintenance

Scheduled maintenance may be performed between 11:00 PM and 5:00 AM IST on weekdays or anytime on Sundays, with at least seventy-two (72) hours' prior written notice. Emergency maintenance requires four (4) hours' notice.

9.3 SLA Credits

If the Uptime Commitment is not met in any calendar month, Client is entitled to service credits applied against the following month's invoice:

Monthly Availability	SLA Credit (% of Monthly Fee)
99.0% to 99.4%	5%
95.0% to 98.9%	10%

90.0% to 94.9%	20%
Below 90.0%	30% plus termination right

9.4 SLA Exclusions

The uptime commitment does not apply to downtime caused by: (a) Client's acts or omissions; (b) third-party service failures outside Service Provider's control; (c) Scheduled Maintenance Windows; (d) Force Majeure Events; or (e) Client's failure to implement Service Provider-recommended patches within a reasonable timeframe.

9.5 Incident Response

Service Provider shall classify and respond to incidents per the severity matrix in Schedule C. Priority 1 (critical) incidents affecting production systems shall receive initial response within one (1) hour and resolution or workaround within four (4) hours. Service Provider shall provide incident reports for all Priority 1 and Priority 2 incidents within five (5) Business Days of resolution.

SECTION 10 — GENERAL PROVISIONS

10.1 Force Majeure

Neither party shall be in breach or liable for delay or failure to perform (other than payment obligations) to the extent caused by a Force Majeure Event. The affected party shall: (i) promptly notify the other party in writing; (ii) use commercially reasonable efforts to mitigate the impact; and (iii) resume performance as soon as reasonably practicable. If a Force Majeure Event continues for more than sixty (60) consecutive days, either party may terminate on thirty (30) days' written notice without further liability.

10.2 Assignment

Neither party may assign or transfer rights or obligations without prior written consent (not to be unreasonably withheld), except that either party may assign to an Affiliate or in connection with a merger, acquisition, or sale of substantially all assets, provided the assignee assumes all obligations and the other party is notified within ten (10) Business Days.

10.3 Dispute Resolution

10.3.1 Negotiation. Any dispute shall first be subject to good-faith negotiations between senior representatives for thirty (30) days from written notice of dispute.

10.3.2 Mediation. If unresolved, either party may refer to mediation administered by the Mumbai Centre for International Arbitration (MCIA), to be completed within sixty (60) days unless extended by written agreement.

10.3.3 Arbitration. If mediation fails, disputes shall be finally resolved by binding arbitration under the Arbitration and Conciliation Act 1996 (as amended), with a sole arbitrator appointed by mutual agreement or failing which by MCIA, seated in Mumbai, conducted in English. The award is final and binding.

10.4 Governing Law

This Agreement is governed by the laws of India. Subject to the dispute resolution provisions in Clause 10.3, the parties submit to the exclusive jurisdiction of courts in Mumbai, Maharashtra.

10.5 Entire Agreement

This Agreement together with all Schedules constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, and understandings. No amendment is binding unless made in writing and signed by authorised representatives of both parties.

10.6 Severability

If any provision is held invalid, illegal, or unenforceable, it shall be modified to the minimum extent necessary to make it valid and enforceable, and remaining provisions continue in full force.

10.7 Waiver

No failure or delay in exercising any right constitutes a waiver. A waiver of one breach does not constitute a waiver of any subsequent breach.

10.8 Notices

All notices shall be in writing and delivered by registered post, nationally recognized courier, or email with confirmed receipt to the addresses on the cover page. Notices are deemed received on delivery (post/courier) or the next Business Day after transmission (email).

10.9 Relationship of Parties

The parties are independent contractors. Nothing creates any partnership, joint venture, agency, franchise, or employment relationship. Neither party has authority to bind the other.

10.10 Anti-Corruption

Each party warrants that it has not and will not make, offer, or accept any payment, gift, or benefit to any government official or other person that would constitute a violation of the Prevention of Corruption Act 1988 or any other applicable anti-bribery laws.

EXECUTION

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date written above.

NEXORA TECHNOLOGIES PRIVATE LIMITED	ARCTIS FINANCIAL SOLUTIONS LIMITED
Signature: _____	Signature: _____
Name: Rohan Mehta	Name: Priya Venkataraman
Title: Chief Executive Officer	Title: Chief Technology Officer
Date: _____	Date: _____

SCHEDULE A — STATEMENT OF WORK

A.1 Project Overview

Service Provider shall design, develop, test, deploy, and maintain a cloud-based financial analytics platform (the Arctis Analytics Platform or AAP). The Platform shall enable Client financial analysts to ingest, process, and visualize structured and unstructured financial data from multiple internal and external sources.

A.2 Deliverables and Milestones

Milestone	Deliverable	Timeline	Payment Trigger
M1: Inception	Architecture blueprint, tech stack sign-off, project plan	Month 1	10%
M2: Data Layer	Ingestion pipeline, data lake schema, ETL jobs	Month 4	15%
M3: Core Platform	Analytics engine, API layer, user authentication module	Month 8	20%
M4: UI & Reporting	Dashboard UI, report templates, export functionality	Month 12	20%
M5: Integration	Third-party integrations (Bloomberg, Reuters, SAP)	Month 18	15%
M6: UAT & Go-Live	UAT support, defect resolution, production deployment	Month 22	10%
M7: Maintenance	Ongoing support, patches, enhancements (Months 23-36)	Months 23-36	10% monthly

A.3 Technical Requirements

Cloud Infrastructure: AWS (primary), multi-region across ap-south-1 (Mumbai) and ap-southeast-1 (Singapore) for disaster recovery. RTO: 4 hours. RPO: 1 hour.

Technology Stack: Backend: Python (FastAPI), Node.js. Database: PostgreSQL 15+, Redis 7+. Data Lake: AWS S3 + Glue. Containerization: Docker + Kubernetes (EKS). CI/CD: GitHub Actions. Monitoring: Datadog.

Performance Requirements: Dashboard load time under 3 seconds at 95th percentile under 500 concurrent users. Report generation under 30 seconds for datasets up to 10 million rows.

Security Requirements: ISO 27001 alignment. OWASP Top 10 compliance. Penetration testing report prior to go-live. AES-256 encryption at rest and in transit. MFA for all Authorised Users.

SCHEDULE C — SERVICE LEVEL AGREEMENT

C.1 Availability Calculation

Uptime is calculated as: (Total Minutes in Month minus Downtime Minutes) divided by Total Minutes in Month, expressed as a percentage. Downtime is measured from the time Client logs a P1 incident ticket to the time Service Provider confirms resolution.

C.2 Incident Priority Matrix

Priority	Definition	Initial Response	Resolution Target
P1 Critical	Complete platform outage or data loss affecting all users	1 hour	4 hours
P2 High	Core functionality unavailable for more than 25% of users	2 hours	8 hours
P3 Medium	Non-critical feature degradation; workaround available	4 hours	3 Business Days
P4 Low	Minor cosmetic or non-impacting issues	1 Business Day	10 Business Days

SCHEDULE D — FEE SCHEDULE

D.1 Fee Breakdown

Service Component	Unit	Rate (INR)	Est. Qty	Total (INR)
Project Management	Month	1,50,000	36	54,00,000
Software Architecture	Hours	8,000	300	24,00,000
Backend Development	Hours	5,500	1,800	99,00,000
Frontend Development	Hours	5,000	900	45,00,000
QA and Testing	Hours	3,500	400	14,00,000
Infrastructure and DevOps	Month	50,000	36	18,00,000
TOTAL CONTRACT VALUE				2,54,00,000*

* Excluding GST. Difference from stated contract value (INR 2,40,00,000) reflects estimated expenses subject to Client pre-approval per Clause 3.2. Service Provider's contingency reserve of INR 14,00,000 is subject to reconciliation audit at Month 18.

D.2 Payment Schedule

Invoices shall be raised on the 1st Business Day of each month for the preceding month's work. Milestone-linked payments are triggered upon Client's written acceptance of the relevant Deliverable, or deemed accepted after ten (10) Business Days of delivery if no written objections are raised.

END OF AGREEMENT